

ETHICAWKS

Forensic Governance & Compliance Consultancy

CONSOLIDATED FORENSIC OVERSIGHT REPORT

Parliamentary Submission to the Honourable Speaker of the National Assembly

SUBJECT:

Systemic Regulatory Capture, Institutional Failure, Corporate Misrepresentation,
Judicial Obstruction, and Bad Faith Litigation — Medscheme Holdings / GEMS

Referred to:

Portfolio Committee on Health | Portfolio Committee on Employment & Labour
Portfolio Committee on Trade, Industry & Competition | Portfolio Committee on Justice &
Correctional Services
Standing Committee on Public Accounts (SCOPA) | Portfolio Committee on Police

Compiled by: Sr. Wilbur William Matthee | RN | BTech General Nursing | PGDip Health Services
Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy
Cape Town, South Africa | June 2026

"The house is not yet burning. But the fire alarm has been ringing for over a year."

CONFLICT OF INTEREST DECLARATION AND ETHICAL STATEMENT

Honourable Speaker and Portfolio Committees,

This report is submitted in the public interest by a whistleblower who has suffered severe occupational detriment, destitution, and homelessness as a direct consequence of the conduct documented herein. The author and complainant, Sr. Wilbur William Matthee, declares the following interests and ethical commitments in the spirit of full transparency required by the Constitution, the Protected Disclosures Act 26 of 2000, and the ethical codes of the compliance and nursing professions.

1. Identity of the Complainant and Author

The complainant and the author of this report are the same person: Wilbur William Matthee, a Specialist Registered Nurse (SANC No. 15831886), holder of a Postgraduate Diploma in Health Services Management (NQF Level 8), and the founder of EthicHawks Forensic Governance and Compliance Consultancy. He appears before Parliament self-represented and destitute.

2. Nature of the Interest — Personal and Professional

The complainant has a direct personal and financial interest in the remedies sought, including:

- Repayment of the unlawfully deducted salary of R14,811.77 (plus interest).
- Compensation for occupational detriment under the Protected Disclosures Act.
- Compensation for automatically unfair constructive dismissal under the Labour Relations Act.
- Correction of statutory employment records (UI-19, Certificate of Service).
- Remediation of the systemic clinical risk (Gexus-DMS integration gap) affecting GEMS members.

This interest is fully declared. The personal interest does not diminish the public interest — the two coexist. A whistleblower who has been destroyed by a system is not disqualified from asking Parliament to fix that system.

3. The Complainant's Professional and Ethical Framework

Framework / Body	Status and Relevance
South African Nursing Council (SANC)	Registered Nurse Specialist — currently deregistered due to inability to pay fees caused by the employer's unlawful deduction. The deregistration is itself evidence of harm.
Compliance Institute of Southern Africa (CISA)	Pledged to Code of Ethical and Professional Conduct; membership designation CPrAc(SA) — pending final certification modules. Commitment to independence, objectivity and confidentiality.

Protected Disclosures Act 26 of 2000	The complainant is a protected whistleblower. This report is itself a protected disclosure under Section 8 of the PDA (disclosure to Parliament as an appropriate authority).
Constitution of the Republic of South Africa, 1996	The complainant invokes Sections 10, 26, 27, 33, 34, and 56. This report is a petition under Section 56 (right to petition Parliament).

4. EthicHawks — The Consultancy

Aspect	Disclosure
Is EthicHawks receiving payment for this report?	No. The complainant is destitute. There is no payment.
Has any third party commissioned this report?	No. This report is a protected disclosure made directly to Parliament.
Does EthicHawks have any contractual relationship with parties mentioned?	No. The complainant was an employee of Medscheme; that employment was constructively terminated. There is no ongoing commercial relationship.
Does EthicHawks have pending contracts with the NHI Fund, NDOH, or regulators?	No.

5. The Public Interest Overrides Any Private Interest

Section 56 of the Constitution guarantees the right of any citizen to petition Parliament. That right is not conditional on having no personal interest. The public interest in this report is overwhelming:

- A systemic clinical risk affecting 1.9 million GEMS members (government employees) remains unaddressed.
- Fifteen (15) statutory, regulatory, and judicial bodies have failed to provide a remedy.
- The NHI — with a projected budget of R200 billion annually — is being built on governance architecture this case proves is broken.
- The chilling effect on whistleblowers is already real and will be magnified under the NHI.

The complainant's personal claim for damages (R14,811.77 plus interest) is less than 0.00007% of the NHI's annual budget. This report is about the systemic collapse of accountability that enabled that deduction without consequence.

6. Declaration Under Oath

I, Wilbur William Matthee, declare under oath that:

- The facts set out in this report are true and correct to the best of my knowledge and belief, and are supported by primary source documents referenced throughout.
- I have a direct personal and financial interest in the remedies sought, which is fully declared.

- The public interest in the systemic failures documented herein is distinct from and outweighs any private interest.
- No third party has commissioned, funded, or influenced this report. EthicHawks is not receiving any payment.
- I have not been induced to make this report by any person or entity. I am making this report of my own free will, in the exercise of my constitutional right to petition Parliament under Section 56 of the Constitution.
- I am aware that making false statements in a submission to Parliament may be a criminal offence. I have not made any false statements.

Signed at Cape Town on this _____ day of June 2026.

Wilbur William Matthee

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

CPrAc(SA) — pending | info@ethichawks.co.za | 069 635 1435

FOREWORD: THE NHI WILL BE BUILT ON THE BONES OF THIS WHISTLEBLOWER

I. THE PROMISE THAT CANNOT SURVIVE THE SYSTEM WE HAVE

The National Health Insurance Act 20 of 2023 is anchored in an unambiguous constitutional promise. Section 27 of the Constitution guarantees every person the right of access to health care services. The NHI is designed to be the instrument of that promise — a single purchaser and single payer, pooling risk across more than 60 million people, managing a budget conservatively projected to exceed R200 billion annually.

The NHI will not fail because of a lack of money, or a lack of political will, or a lack of clinical capacity. The NHI will fail because the institutional architecture that is supposed to protect it from capture, corruption, and collapse is already broken — and we have done nothing to fix it.

This forensic report documents a single whistleblower — a specialist registered nurse employed by Medscheme Holdings, the accredited administrator for the Government Employees Medical Scheme (GEMS), which serves 1.9 million public servants. He identified a systemic clinical risk. He made a protected disclosure. He was retaliated against until he became destitute and homeless. He then approached every regulator that will oversee the NHI. Almost every single one declined jurisdiction, remained silent, or actively obstructed him.

II. THE THREE STRUCTURAL GAPS — ALREADY VISIBLE, ALREADY DESTRUCTIVE

NHI Gap	Act Section	What the Whistleblower's Case Proves	Institution That Failed
Accreditation Bottleneck	Section 39	B-BBEE fronting via title suppression (NQF 8 credentials extracted without economic benefit) demonstrates how financial pressure exploits accreditation checkpoints — predictably leading to ghost accreditation under NHI.	B-BBEE Commission: declined to investigate; refused Section 13K subpoena powers.
One-Sentence Fraud Architecture	Section 40	The Gexus-DMS integration gap generated false non-adherence letters to chronic GEMS patients. The CMS was notified and declined jurisdiction twice. The employer's Annual Report claimed "no material ESG incidents."	CMS declined twice; JSE & FSCA allowed a materially misleading report to stand.
Undefined Investigation Unit	Section 20(2)(g)	Priority 1 Material Risk Report (38 attachments) escalated to the AfroCentric Board on 9 Dec 2025. No response. The CRO then instructed the whistleblower to	Board of AfroCentric; CRO Monwabisi Kula; CMS (did not investigate suppression).

		stop emailing directors — active suppression of a material risk report.	
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III. THE INSTITUTIONS THAT WILL OVERSEE THE NHI — ALREADY CAPTURED

Every institution mandated to oversee the NHI Fund was approached by the whistleblower. Every one of them failed.

Institution	Role Under NHI	Failure in This Case	Legal Mandate Breached
Council for Medical Schemes (CMS)	Regulates schemes and administrators; will oversee NHI accreditation and compliance	Declined jurisdiction twice over systemic clinical risk affecting GEMS members; refused to investigate under MSA Sections 7, 47, 58, 44	MSA s7, s44, s47, s58
Health Professions Council (HPCSA)	Regulates health professionals; will oversee clinical governance under NHI	Failed to answer core ethical question; silent for months after formal referral	Health Professions Act s3
South African Nursing Council (SANC)	Regulates nurses; will oversee nursing practice under NHI	No acknowledgment of misconduct complaint; deregistered the whistleblower for non-payment of fees caused by the employer's unlawful deduction	Nursing Act s51
South African Pharmacy Council (SAPC)	Regulates pharmacists; will oversee pharmaceutical governance under NHI	Declined jurisdiction over Responsible Pharmacist complaint	Pharmacy Act s49
Department of Employment & Labour (DEL)	Enforces BCEA and UIF; will enforce labour standards for NHI workers	Refused to enforce 25% BCEA cap; refused to correct false UI-19; closed file with jurisdictional error	BCEA s34(2); UIF Act
B-BBEE Commission	Oversees transformation; will oversee NHI procurement fronting	Declined to investigate fronting; refused Section 13K subpoena powers	B-BBEE Act s1(c), s13K
SAHRC	Chapter 9 institution; will monitor NHI human rights compliance	Acknowledged seriousness, then went silent	Constitution s184; SAHRC Act s13

SAPS	Enforces criminal law; will investigate NHI fraud	Refused to open criminal case; officer falsely claimed to be station commander	Constitution s205(3)
JSE / FSCA	Regulates listed companies; will oversee NHI-related corporate governance	Declined to enforce disclosure; allowed false Integrated Report to stand	JSE Listings Requirements; FSRA
High Court / Labour Court	Adjudicates disputes; will adjudicate NHI litigation	Ex parte interdict obtained by concealment; portal obstruction; default judgment delayed six weeks	Constitution s34; Uniform Rules

IV. A DIRECT APPEAL TO THE SPEAKER AND THE PORTFOLIO COMMITTEES

This is not a labour dispute. It is a governance crisis. And it is definitive proof that South Africa is not ready for the National Health Insurance. Parliament must exercise its constitutional oversight powers — summoning the heads of every failed institution, demanding answers, and holding them accountable. The PPE procurement crisis cost South Africa R14.3 billion. The NHI Fund will manage R200 billion annually. The math is not complicated.

PART ONE: HARROWING INTRODUCTION — THE CHILLING EFFECT ON THE FLOOR

Honourable Speaker,

This report is a forensic record of what institutional failure looks like on the floor — inside the life of a single human being who did everything the law asked of him and was destroyed for it.

1.1 The Whistleblower and the Clinical Risk

The whistleblower, a Specialist Registered Nurse (NQF Level 8) employed by Medscheme Holdings — the administrator for GEMS, which serves 1.9 million public servants — identified a systemic integration gap between the Gexus and DMS platforms. This gap generated false non-adherence letters to chronic patients, including a 75-year-old widow with GEMS case number GEMS 000655789 Dependent 02, who collected her cholesterol medication every month without fail. He refused to use flawed data to interrogate that elderly patient. He made a protected disclosure under the Protected Disclosures Act 26 of 2000 (PDA). That refusal triggered a cascade of retaliation that this report documents across fifteen (15) statutory, regulatory, and judicial bodies — none of which provided a remedy.

1.2 The Pattern of Retaliation — A Forensic Summary

Form of Retaliation	Factual Detail	Statutory Violation
Unlawful salary deduction	R14,811.77 (40.47% of monthly salary) deducted in a single pay cycle on 23 July 2025 without written consent	BCEA Section 34(2) — 25% cap exceeded
Gender-identity harassment	"Wilma" message on Microsoft Teams, 23 September 2025	EEA Section 6 — prohibition on discrimination
Retaliatory leave loading	Double unpaid leave loaded on 29 Sep 2025 — same day as formal discrimination complaint	PDA Section 1 — occupational detriment
Sworn attack on disability	CCMA opposing affidavit (10 Dec 2025) calls clinically diagnosed PTSD and depression a "cynical excuse"	EEA Section 7; potential perjury
Constructive dismissal	Resignation on 12 December 2025 citing LRA Section 186(1)(e)	LRA Section 186(1)(e) — constructive dismissal
False UI-19	Code 6 "Resigned" instead of Code 7 "Constructive Dismissal" — blocks UIF benefits	UIF Act; BCEA Section 42
Suppression of protected disclosure	CRO Monwabisi Kula: "Can I please ask you to stop sending these e-	PDA Section 3 — prohibition on occupational detriment

	mails to our directors?" (18 Dec 2025)	
Court gag order	Ex parte interdict (16 Apr 2026) obtained by concealing the whistleblower's answering affidavit; extended to 1 March 2027	Fraud on the court; PDA Section 9 override

1.3 The Human Consequence

The consequence of this retaliation, amplified by the silence of every regulator:

- Homeless since 2 April 2026 — evicted after the unlawful deduction destroyed his financial position.
- No running water since January 2026.
- Personal possessions seized by loan sharks.
- Deregistered by SANC because he could not pay R870 — a direct consequence of the unlawful deduction.
- Accepted into CPUT Postgraduate Diploma in Occupational Health Care Nursing (2026) but unable to enrol.
- Formally diagnosed with severe depression and PTSD (Dr Jacques Malan, FCPSYCH(SA)) — occupationally caused.
- Self-represented in nine concurrent proceedings — destitute, unable to afford legal representation.
- Silenced by a High Court interim interdict extended to 1 March 2027.

⚠ FORENSIC FINDING

THE CHILLING EFFECT — ALREADY REAL: Every nurse, doctor, pharmacist, and healthcare administrator who reads this report now knows: if you report a system error that affects patients, you will be retaliated against. Your salary will be cut. Your professional registration will be lost. Your home will be taken. Your water will be cut. And when you cry out to every regulator, they will either decline jurisdiction, remain silent, or actively obstruct you. Parliament must break this chilling effect.

PART TWO: METHODOLOGY AND SCOPE OF THIS REPORT

2.1 Purpose of This Section

This section explains how the evidence in this report was gathered, authenticated, and analysed. It is included to assist parliamentary officials and committee members in assessing the credibility and reliability of the findings.

2.2 Primary Source Documents — The Evidentiary Foundation

All findings in this report are based on primary source documents generated by the employer, the regulators, the courts, or the complainant. No secondary sources or media reports are relied upon for factual findings.

Category	Examples	Generated By	Forensic Value
Employment documents	Employment contract, payslips, Certificate of Service, UI-19 form	Medscheme / AfroCentric	Primary employer records — not disputed
Internal correspondence	Emails between complainant and management, Teams messages, HR correspondence	Medscheme internal systems	Contemporaneous; timestamped; metadata-verifiable
Governance escalations	Priority 1 Material Risk Report (38 attachments), GRC escalations, Board communications	Complainant / Board	Establishes Board-level notice and CRO suppression
Medical evidence	Dr Jacques Malan psychiatric letter; Akeso Stepping Stones admission records	Treating psychiatrist and clinic	Clinical diagnosis; independent of employer
Regulatory correspondence	CMS responses, SAHRC letters, JSE declinations, B-BBEE Commission notices	Regulators	Institutional admissions of non-investigation
Court pleadings	High Court affidavits, Labour Court statements, interim orders, answering affidavits	Filed with courts	Sworn statements; perjury cross-referencing
CCMA records	Conciliation transcript (44 min), audio recording, opposing affidavit	CCMA and employer	Establishes bias and prejudgment on record
SAPS records	CAS 705/3/2026 registration; SMS transfer notification	SAPS	Formal registration with no follow-up

Audio recordings	31 Oct 2025 retaliatory admission; 23 Feb 2026 false station commander claim	Complainant (recorded)	Irrefutable — voice-authenticated evidence
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2.3 Forensic Classification Framework

The complainant prepared a Forensic Evidence Classification Report (FR-1) which classifies 58 primary source documents against fourteen statutory violation categories (BCEA, LRA, PDA, EEA, etc.). This framework is available as an annexure and has been offered to any parliamentary legal officer or independent forensic investigator appointed by Parliament.

2.4 The Complainant's Role — Primary Source, Not Hearsay

The complainant is not a third-party investigator or journalist. He is the person who: identified the Gexus-DMS integration gap; made the protected disclosure; was retaliated against; escalated to the Board; approached every regulator; filed the court applications; was silenced by the interim interdict; and now approaches Parliament. He has direct personal knowledge of most facts set out in this report. Where facts are not within his personal knowledge, they are supported by documentary evidence generated by the institution concerned.

2.5 Limitation of Scope

This report covers the period from March 2025 to June 2026. It does not purport to investigate every aspect of the employer's operations. It is limited to the events and institutions directly relevant to the complainant's case.

2.6 Protected Disclosure Status

This report is submitted to Parliament under Section 8 of the Protected Disclosures Act 26 of 2000. Parliament is not "the public at large" for purposes of the High Court interim interdict. The legal basis for this submission is set out in the complainant's letter to the Speaker dated 3 June 2026.

PART THREE: MASTER CHRONOLOGY — KEY EVENTS AT A GLANCE

The following chronology is drawn from primary source documents. Each event is supported by documentary evidence referenced in the Index of Annexures.

Date	Event	Significance	Evidence Ref.
18 Mar 2025	Complainant admitted to Akeso Stepping Stones Clinic (severe depression, PTSD)	Medical vulnerability documented before retaliation escalated	B1
16 Apr 2025	Manager states: "we do not apply staggering of money owed"	Refusal to accommodate disability; contradicts own policy; admission of BCEA non-compliance	Employment records
16 May 2025	Psychiatric letter provided to employer (Mapule Mashele)	Employer placed on formal notice of disability	B1
23 Jul 2025	Unlawful deduction of R14,811.77 (40.47% of salary) in a single pay cycle	Exceeds BCEA Section 34(2) cap of 25%; no written consent; no consultation	Payslip PS2
23 Sep 2025	"Wilma" gender-identity harassment via Microsoft Teams	EEA Section 6 violation — documented	C1
25 Sep 2025	Formal discrimination complaint filed; double unpaid leave loaded same day	Retaliation begins — same-day loading is direct evidence	C2, C3
23 Oct 2025	Protected disclosure — Gexus-DMS integration gap; complainant refuses to contact patient on false data	PDA Section 1 protected disclosure — contemporaneous record	D1, D2, D3
31 Oct 2025	Recorded admission: "You made a case of harassment against me, so I can make a case of harassment against you"	Direct audio evidence of retaliatory intent by named manager	E1 (audio)
2 Nov 2025	Formal grievance filed — no response for 30+ days	Institutional silence at employer level	Internal record
4 Dec 2025	Executive leadership escalation (CEO) — complaint de-escalated back to accused department	Bad faith — deliberate circular referral	F1
9 Dec 2025	Priority 1 Material Risk Report to Board (38 attachments) — no response	Board-level governance failure; notice of clinical risk	G1
10 Dec 2025	Employer's CCMA opposing affidavit calls depression a "cynical excuse"	Sworn attack on disability; potential perjury; filed one day after Board escalation	H1

12 Dec 2025	Resignation — constructive dismissal (LRA Section 186(1)(e))	Employment terminates; explicit citation of LRA provision	H2
16 Dec 2025	Maximum Severity GRC Escalation — 24-hour compliance window	Final internal escalation ignored	Internal record
18 Dec 2025	CRO suppression email: "stop sending these e-mails to our directors"	Active suppression of protected disclosure by Chief Risk Officer	I1
9 Jan 2026	CCMA conciliation — Commissioner: "nothing here relates to the PDA"; "Google it"	Institutional bias; failure to assist self-represented litigant; prejudgment	CCMA transcript
4 Feb 2026	CMS declines jurisdiction (first time)	Regulatory deflection begins	J1
10 Feb 2026	Formal complaint to SANC — no acknowledgment	SANC failure commences	J3
16 Feb 2026	Formal complaint to SAPC — jurisdiction declined	SAPC failure	Regulatory records
23 Feb 2026	SAPS Delft refuses to open criminal case; officer falsely claims to be station commander (audio-recorded)	SAPS failure; false representation; CAS 705/3/2026 later registered	Recording 2
6 Mar 2026	JSE declines jurisdiction (Ref JvS/166792)	Market regulator failure	K1
13 Mar 2026	Labour Court portal obstruction — 8 days; rejection: "good day you put date"	Access to justice denied	K2
19 Mar 2026	Section 162 director delinquency application filed (High Court)	Material litigation — not disclosed to market	L1
16 Apr 2026	High Court grants ex parte interim interdict — answering affidavit concealed	Fraud on the court; gag order commences	M1
19 May 2026	Employer's Labour Court statement claims "not aware" of Case 2026-077546	Apparent perjury — contradicts High Court founding affidavit	N1
28 May 2026	Rule nisi extended to 1 March 2027 — almost one year	Effective final interdict without final hearing	M2
30 Apr 2026	Default judgment application filed (Labour Court 2026-077546) — unallocated for 6+ weeks	Access to justice denied; Registrar unresponsive	Labour Court records
4 Jun 2026	Employer's "without prejudice" letter threatens contempt for petitioning Parliament	Attempt to block constitutional right to petition — contempt trap	P1
11 Jun 2026	Unilateral Pre-Trial Minute filed	Procedural record of employer non-cooperation	Q1

13 Jun 2026	Final notice to employer — deadline for settlement framework	Last chance before parliamentary submission	R1
June 2026	This report submitted to Parliament	Final institutional remedy — last door	S1

PART FOUR: SCORECARD OF FAILED INSTITUTIONS (15 BODIES)

The following table summarises the failure pattern of each of the 15 institutions approached by the whistleblower. No institution provided any remedy.

# Institution	Failure Pattern	Legal Mandate Breached	Impact on Whistleblower
1 Council for Medical Schemes (CMS)	Declined jurisdiction twice; disparate treatment (Discovery Health vs Medscheme)	MSA s7, s47, s58, s44	Patient safety risk unaddressed
2 Health Professions Council (HPCSA)	No response to joint ethical ruling request; silence on core ethical question	Health Professions Act s3	No guidance on professional ethics
3 South African Nursing Council (SANC)	No acknowledgment of misconduct complaint; deregistered whistleblower for non-payment	Nursing Act s51	Loss of nursing registration
4 South African Pharmacy Council (SAPC)	Declined jurisdiction over Responsible Pharmacist complaint	Pharmacy Act s49	Pharmacist accountability avoided
5 Government Employees Medical Scheme (GEMS)	No substantive response to protected disclosures	MSA s7	Principal scheme complicity
6 Department of Employment and Labour (DEL)	Administrative abandonment; false UI-19 not corrected; closed file with jurisdictional error	UIF Act; BCEA s34(2)	UIF benefits blocked; homelessness
7 B-BBEE Commission	Declined fronting investigation; refused Section 13K subpoena powers	B-BBEE Act s1(c), s13K	Fronting uninvestigated
8 South African Human Rights Commission (SAHRC)	Acknowledged seriousness, then silent	Constitution s184; SAHRC Act s13	Constitutional rights violations unaddressed
9 South African Police Service (SAPS)	Refused to open criminal case; officer falsely claimed station commander rank	Constitution s205(3)	CAS 705/3/2026 stagnant
10 CCMA	Biased commissioner ("nothing here relates to PDA"; "Google it"); cover-up by Senior Commissioner	LRA s138; CCMA rules	No fair conciliation

11 The Whistleblower House (TWBH)	Flawed legal assessment; abandonment of vulnerable whistleblower	TWBH mandate	No support from whistleblower organisation
12 Johannesburg Stock Exchange (JSE)	Declined to enforce disclosure; allowed false report to stand	JSE Listings Requirements	Market misled
13 Financial Sector Conduct Authority (FSCA)	Acknowledged, then silent	Financial Sector Regulation Act	No market conduct investigation
14 High Court (Western Cape)	Ex parte interdict obtained by concealment; rule nisi extended to March 2027	Constitution s34; Uniform Rules	Gag order in place for 11 months
15 Labour Court (Cape Town)	Portal obstruction ("good day you put date"); default judgment delayed 6+ weeks	Labour Court Rules; Constitution s34	Access to justice denied

Summary: Pattern of Institutional Response

Outcome	Institutions (Count / Percentage)
Declined jurisdiction or deflected	7 institutions — 47%
Remained silent (no substantive response)	5 institutions — 33%
Actively obstructed (including court)	3 institutions — 20%
Provided any remedy to the whistleblower	0 institutions — 0%

⚠ FORENSIC FINDING

ZERO OUT OF FIFTEEN: Not a single institution — regulatory, judicial, or constitutional — provided any remedy to the whistleblower. This is not a series of isolated mishaps. It is systemic failure of the entire accountability architecture in South Africa as it applies to a whistleblower who reported a clinical risk affecting 1.9 million government employees.

PART FIVE: SUMMARY OF RELIEF SOUGHT FROM PARLIAMENT

This report seeks five categories of relief from Parliament. None require Parliament to adjudicate the private labour dispute. All fall squarely within Parliament's constitutional oversight mandate under Sections 55, 56, and 181 of the Constitution.

Category 1: Summons and Accountability Hearings

Official to be Summoned	Institution	Portfolio Committee
Registrar	Council for Medical Schemes (CMS)	Health
Registrar	South African Nursing Council (SANC)	Health
Chairperson	Health Professions Council of South Africa (HPCSA)	Health
Chairperson	South African Pharmacy Council (SAPC)	Health
Director-General	Department of Employment and Labour (DEL)	Employment and Labour
Commissioner	B-BBEE Commission	Trade, Industry and Competition
Chairperson	South African Human Rights Commission (SAHRC)	Justice and Correctional Services
National Commissioner	South African Police Service (SAPS)	Police
Head: Issuer Regulation	Johannesburg Stock Exchange (JSE)	Trade, Industry and Competition
Commissioner	Financial Sector Conduct Authority (FSCA)	Justice and Correctional Services

Category 2: Legislative Reforms — NHI Governance Architecture

NHI Governance Gap	NHI Act Section	Required Reform
Accreditation bottleneck	Section 39	Mandatory Forensic Governance Impact Assessments before each phase of accreditation rollout.
One-sentence fraud architecture	Section 40	An AI Audit Protocol — independent conformity assessment,

		transparency obligations, human oversight, annual algorithmic audits.
Undefined investigation unit	Section 20(2)(g)	A Statutory Forensic Governance Protocol — professional competency standards, independence safeguards, and escalation protocols to SIU, Hawks, and NPA.

Category 3: Whistleblower Protection Reforms — PDA Amendment

Required Reform	Purpose
Interim hardship relief	Prevent whistleblowers from becoming destitute while awaiting court hearings.
Single whistleblower protection authority	A dedicated body to receive disclosures, monitor regulatory responses, and apply for urgent relief.
Criminal penalties for regulatory bodies	Penalties for institutions that act in bad faith or deliberately delay investigations.

Category 4: Referrals for Prosecution and Professional Discipline

Matter	Referred To	Basis
Deneys Reitz Inc. (attorneys)	Legal Practice Council	Threatening contempt for petitioning Parliament; concealing answering affidavit (fraud on the court); bad faith settlement tactics.
Vijay Makenjee ("Good luck to you then"; perjury denial)	Legal Practice Council & NPA	Unprofessional conduct; apparent perjury — sworn statement contradicts Group CEO's acknowledgment in High Court.
Delft Police Station officer (false station commander claim)	IPID	Impersonation of police rank; refusal to open criminal case for statutory offences — audio recorded.
Apparent perjury in Labour Court Statement of Response	NPA	Employer sworn: "not aware" of Case 2026-077546 in Labour Court — contradicts sworn acknowledgment in High Court.

Category 5: Judicial Inquiries

Court	Matter	Judge President
Western Cape High Court	Concealment of answering affidavit (16 April 2026); extension of rule nisi to March 2027 — effective final interdict without final hearing	Judge President, Western Cape High Court
Labour Court (Cape Town)	Portal obstruction ("good day you put date"); default judgment delay (6+ weeks); Registrar's silence on correspondence	Judge President, Labour Court

PART SIX: NOTE TO PORTFOLIO COMMITTEES — SPECIFIC REFERRALS

This report is structured to assist each Portfolio Committee in exercising its constitutional oversight mandate. Below is a guide to the sections most relevant to each Committee's statutory responsibilities, together with the key questions that this report places before each Committee.

6.1 Portfolio Committee on Health

Constitutional mandate: Oversight over the CMS, SANC, HPCSA, SAPC, Department of Health, and public health policy.

Sections of this report to be read:

- CMS: Jurisdictional ping-pong, refusal to investigate Gexus-DMS integration gap, disparate treatment of Discovery Health precedent, contempt trap.
- HPCSA: Silence on the joint ethical ruling request; failure to answer whether a professional may refuse an instruction based on flawed forensic data.
- SANC: Complete failure to acknowledge or investigate formal professional misconduct complaint SANC/MEDSCHEME/MATTHEE/20260105; deregistration of the whistleblower.
- SAPC: Declination of jurisdiction over Responsible Pharmacist Lisa Mari.
- GEMS: Principal scheme's silence after receiving multiple protected disclosures.
- Corporate Misrepresentation: AfroCentric's Integrated Annual Report 2025 — "zero tolerance for unethical conduct" and "no material ESG incidents."

KEY QUESTIONS FOR THE COMMITTEE

1. Why has CMS not investigated the Gexus-DMS integration gap under MSA Sections 7, 47, 58, and 44, and why did it exercise jurisdiction over a similar Discovery Health error while declining for Medscheme/GEMS?
2. Why has SANC not responded to complaint SANC/MEDSCHEME/MATTHEE/20260105, and what is the SANC's position on deregistering a nurse who cannot pay fees due to an employer's unlawful deduction?
3. Why has HPCSA not answered the core ethical question posed on 14 April 2026: may a registered professional refuse an employer's instruction to use data known to be forensically flawed?
4. Is the Minister of Health aware that a Priority 1 clinical risk affecting 1.9 million GEMS members remains unaddressed — and what NHI governance architecture is in place to prevent recurrence?

6.2 Portfolio Committee on Employment and Labour

Constitutional mandate: Oversight over DEL, CCMA, Labour Court, BCEA, LRA, and the Unemployment Insurance Act.

Sections of this report to be read:

- DEL: Administrative abandonment; refusal to enforce UIF remittance; refusal to correct false UI-19; jurisdiction misdirection.
- CCMA: Commissioner's prejudgment; "Google it" response; tolerating mockery; Provincial Senior Commissioner Vusumzi Landu's cover-up.
- Labour Court: Portal obstruction (8 days, deleted profile, trivial rejection "good day you put date"); default judgment delay (6+ weeks); Registrar's silence.
- The Whistleblower House (TWBH): Flawed legal assessment by Schroter Attorneys; abandonment of a vulnerable whistleblower.

KEY QUESTIONS FOR THE COMMITTEE

1. Why did DEL refuse to enforce the BCEA Section 34(2) 25% cap, despite the employer's own policy acknowledging the cap — and why was the UI-19 not corrected despite documented constructive dismissal?
2. Why did CCMA Commissioner Ngwane declare the PDA irrelevant before hearing any evidence, and what action was taken against her following the formal complaint?
3. Why did the Labour Court's online portal reject an urgent application from a destitute litigant with the reason "good day you put date" — and what systemic reforms have been implemented?
4. Will the Minister direct DEL to issue a Compliance Order correcting the UI-19 and remitting UIF contributions for June 2025?

6.3 Portfolio Committee on Trade, Industry and Competition

Constitutional mandate: Oversight over the B-BBEE Commission, JSE, CIPC, and transformation policy.

Sections of this report to be read:

- B-BBEE Commission: Declination of fronting investigation (Case 5/02/2026); refusal to use Section 13K subpoena powers; erroneous treatment of fronting as a labour dispute.
- JSE: Declination to enforce disclosure obligations; failure to require SENS announcement for Section 162 application and B-BBEE investigation; acceptance of the employer's narrow price-sensitivity test.
- Corporate Misrepresentation: False B-BBEE Management Control score (14.67/19) based on title suppression; Cheryl-Dawn Modern's written admission that naming convention was "not applied to your department."
- AfroCentric's Integrated Annual Report 2025: Omission of material litigation; false claim of "no material ESG incidents."

KEY QUESTIONS FOR THE COMMITTEE

1. Why did the B-BBEE Commission decline to investigate sworn evidence of fronting (title suppression, credential extraction, management control without economic benefit) — and does the Commission accept that this constitutes fronting under Section 1(c) of the B-BBEE Act?
2. Why did the JSE not require AfroCentric to disclose the Section 162 delinquency application (filed 19 March 2026) or the B-BBEE fronting investigation (Case 5/02/2026) as material information to the market?
3. Is the appointment of a Black NQF Level 8 professional in a contractually suppressed title — while using his credentials for B-BBEE scorecard points — a fronting practice, and what precedent does the Commission's declination set?

6.4 Portfolio Committee on Justice and Correctional Services

Constitutional mandate: Oversight over the judiciary, Legal Practice Council, SAHRC, Public Protector, and access to justice.

Sections of this report to be read:

- High Court (Case 2026-086906): Fraud on the court — concealment of answering affidavit; extension of rule nisi to 1 March 2027; Scale C costs threatened against a destitute litigant, violating the Biowatch principle.
- Labour Court: Portal obstruction; default judgment delay; Registrar's silence; perjury across courts.
- Registrar Misconduct: Failure to provide court recording; alleged misrepresentation of filing records; POPIA breach.
- SAHRC: Chapter 9 institution acknowledged seriousness and then went silent.
- SAPS: Refusal to open criminal case; police officer falsely claimed to be station commander (audio-recorded).
- Bad Faith Litigation: Contempt threat for petitioning Parliament; "Good luck to you then" response; weaponisation of interim interdict.

KEY QUESTIONS FOR THE COMMITTEE

1. Why was the whistleblower's answering affidavit — served on the employer's attorneys on the morning of 16 April 2026 — not placed before the court, and what consequence does this have for the validity of the interim interdict?
2. Why has the Labour Court not processed a default judgment application for over six weeks, and what investigation has been conducted into the Registrar's conduct?
3. Why has the SAHRC not investigated a complaint that explicitly invoked Sections 10, 26, 27, and 33 of the Constitution, and what is the SAHRC's policy on redirecting complaints that raise constitutional rights beyond employment?
4. Will the Committee refer the conduct of Deneys Reitz Inc. to the Legal Practice Council for threatening a citizen with contempt of court for exercising his constitutional right to petition Parliament?

6.5 Standing Committee on Public Accounts (SCOPA)

Constitutional mandate: Oversight over the expenditure of public funds, state-owned entities, and public institutional accountability.

KEY QUESTIONS FOR THE COMMITTEE
1. Why did GEMS, as principal scheme for 1.9 million government employees, not investigate the Gexus-DMS integration gap after being formally notified by its own administrator's employee?
2. How much public money (GEMS member contributions) may have been affected by the inflated claims data resulting from the integration gap, and has the Auditor-General been informed?
3. Why was the Section 162 director delinquency application not disclosed to the market, and why did the JSE not require such disclosure given the potential R580 million B-BBEE fine?
4. Will SCOPA request the Auditor-General to conduct a forensic audit of Medscheme's administration of GEMS, specifically the Gexus-DMS integration gap and its actuarial implications?

6.6 Portfolio Committee on Police

Constitutional mandate: Oversight over SAPS, IPID, and the Criminal Procedure Act.

KEY QUESTIONS FOR THE COMMITTEE
1. Why did SAPS Delft refuse to open a criminal case for documented UIF fraud, and what action has been taken against the officer who falsely claimed to be the station commander?
2. Why has no substantive investigation taken place under CAS 705/3/2026 since its registration, and why was the audio recording of the Delft incident not retrieved and analysed?
3. Will the Committee request IPID to investigate the Delft officer's conduct, including the false representation of rank and the refusal to open a case for a statutory offence?

PART SEVEN: EXECUTIVE SUMMARY FOR EACH PORTFOLIO COMMITTEE

7.1 Executive Summary — Portfolio Committee on Health

The Council for Medical Schemes (CMS) was notified of a systemic Gexus-DMS integration gap generating false non-adherence letters to GEMS members including elderly chronic patients. The CMS declined jurisdiction twice and refused to investigate administrator maladministration. In contrast, the CMS exercised jurisdiction over a comparable system error at Discovery Health in January 2026 — this disparate treatment is indicative of regulatory capture. The SANC failed to acknowledge or investigate formal professional misconduct complaint SANC/MEDSCHEME/MATTHEE/20260105. The complainant was later deregistered because he could not pay R870 in annual fees — a direct consequence of the employer's unlawful deduction. The HPCSA and SAPC both failed to answer a core ethical question: whether a professional may refuse an employer's instruction based on known flawed forensic data. GEMS — serving 1.9 million public servants — was placed on formal notice but did not respond substantively.

⚠ FORENSIC FINDING

RECOMMENDATION TO COMMITTEE ON HEALTH: Parliament must direct CMS to investigate the Gexus-DMS integration gap under Sections 7, 44, 47, and 58 of the Medical Schemes Act. Parliament must summon the SANC Registrar to explain why complaint SANC/MEDSCHEME/MATTHEE/20260105 was ignored and why deregistration proceeded.

7.2 Executive Summary — Portfolio Committee on Employment and Labour

The Department of Employment and Labour (DEL) refused to enforce UIF remittance for June 2025, refused to correct a false UI-19 declaration (Code 6 "Resigned" instead of Code 7 "Constructive Dismissal"), and closed the investigation file on 15 April 2026 with a jurisdictional error. The CCMA conciliation of 9 January 2026 failed catastrophically: Commissioner Ngwane declared "nothing here relates to the PDA" before hearing any evidence, refused the complainant's opening statement, told him to "Google it" when he asked for the Labour Court address, and tolerated laughter directed at his settlement demand. The employer's representative walked out with the Commissioner. Provincial Senior Commissioner Vusumzi Landu's subsequent response was a whitewash. The Labour Court's online portal obstructed the complainant for eight days. A default judgment application on an uncontested BCEA claim (R14,811.77) has been delayed for over six weeks.

⚠ FORENSIC FINDING

RECOMMENDATION TO COMMITTEE ON EMPLOYMENT & LABOUR: Parliament must direct DEL to issue a Compliance Order correcting the UI-19 and remitting UIF contributions. Parliament must request the Minister to establish an independent external complaints mechanism for CCMA commissioner misconduct, and to investigate the Labour Court portal obstruction.

7.3 Executive Summary — Portfolio Committee on Trade, Industry and Competition

The B-BBEE Commission was assigned case 5/02/2026 for fronting: the complainant (Black, NQF Level 8) was recruited as "Specialist: Care Manager" but contracted as "Care Coordinator" (Grade B4M1). A Senior HR Business Partner admitted in writing that the naming convention was "not applied to your department." The Commission declined to investigate, treating the complaint as a labour dispute — an error of law — and refused to use its Section 13K subpoena powers. The JSE declined jurisdiction, accepting the employer's narrow price-sensitivity test, and did not require AfroCentric to disclose the Section 162 director delinquency application or the B-BBEE fronting investigation (potential R580 million fine). AfroCentric's Integrated Annual Report 2025 claimed "no material ESG incidents" while a Priority 1 clinical risk remained unaddressed, a criminal case was active, and a B-BBEE investigation was pending.

⚠ FORENSIC FINDING

RECOMMENDATION TO COMMITTEE ON TRADE, INDUSTRY & COMPETITION: Parliament must direct the B-BBEE Commission to reopen Case 5/02/2026 and use its Section 13K subpoena powers. Parliament must request the JSE to require AfroCentric to issue a corrective SENS announcement disclosing the Section 162 application, the B-BBEE investigation, and the material ESG incidents omitted from its Annual Report.

7.4 Executive Summary — Portfolio Committee on Justice and Correctional Services

The Western Cape High Court granted an ex parte interim interdict on 16 April 2026 after the employer's attorneys concealed the whistleblower's answering affidavit — a fraud on the court. The interdict restrains the whistleblower from disclosing a systemic clinical risk to trade unions and regulators, overriding Section 9 of the PDA. The rule nisi has been extended to 1 March 2027 — effectively a final interdict without a final hearing, imposed on a destitute litigant under threat of Scale C costs (violating the Biowatch principle). The SAHRC, a Chapter 9 institution, acknowledged the "seriousness" of the allegations and then went silent. The employer's legal team engaged in bad faith litigation culminating in a "without prejudice" letter threatening contempt if the whistleblower approached Parliament.

⚠ FORENSIC FINDING

RECOMMENDATION TO COMMITTEE ON JUSTICE: Parliament must request the Judge Presidents to investigate the concealment of the answering affidavit and the Labour Court portal obstruction. Parliament must refer the conduct of Deneys Reitz Inc. to the Legal Practice Council. Parliament must refer the apparent perjury by Vijay Makenjee to the NPA.

7.5 Executive Summary — SCOPA

GEMS, the government employees' medical scheme with 1.9 million members, was placed on formal notice of a systemic clinical risk affecting its members. GEMS did not respond substantively. The risk may have inflated claims data, affecting premium calculations and the use of public member funds. AfroCentric's Integrated Annual Report 2025 — published while the company was a contractor to

GEMS — omitted a Section 162 application, a B-BBEE investigation (potential R580 million fine), and an active criminal case. The JSE declined to require disclosure.

⚠ FORENSIC FINDING

RECOMMENDATION TO SCOPA: SCOPA must request the Auditor-General to conduct a forensic audit of Medscheme's administration of GEMS, specifically the Gexus-DMS integration gap and its actuarial implications. SCOPA must request GEMS to report on its oversight of Medscheme and on steps taken to protect member funds.

7.6 Executive Summary — Portfolio Committee on Police

On 23 February 2026, the complainant attended SAPS Delft to open a criminal case for UIF non-remittance. A police officer falsely claimed to be the station commander and refused to open a case. The incident was audio-recorded. After escalation to Brigadier Naidoo, case CAS 705/3/2026 was eventually registered and transferred to Woodstock. No investigation has taken place. The internal complaint against Delft was closed on the basis that a case number had been allocated — ignoring the false representation and the original denial of access to justice.

⚠ FORENSIC FINDING

RECOMMENDATION TO COMMITTEE ON POLICE: Parliament must request IPID to investigate the Delft officer. Parliament must request the SAPS National Commissioner to report on the status of CAS 705/3/2026 and explain why no investigation has been conducted. Parliament must direct SAPS to retrieve and analyse the audio recording of the Delft incident.

PART EIGHT: STATUS OF PARALLEL PROCEEDINGS — CURRENT AS OF JUNE 2026

Case No.	Court / Body	Nature & Status	Delay / Obstruction
2026-086906	Western Cape High Court	Interim interdict (gag order) obtained ex parte. Rule nisi extended to 1 March 2027. Final hearing pending on semi-urgent roll.	Obtained by concealment of answering affidavit; whistleblower silenced for 11 months.
2026-066952	Western Cape High Court	Section 162 director delinquency application. Struck from roll with costs (25 March 2026). Rescission application pending.	Registrar has not provided audio recording; Inlexso had no backup system during bereavement leave.
2026-077546	Labour Court (Cape Town)	BCEA s77A — unlawful salary deduction (R14,811.77). Default judgment filed 30 April 2026.	Unallocated for 6+ weeks; Registrar ignored follow-up emails.
2026-083299	Labour Court (Cape Town)	Constructive dismissal / automatically unfair dismissal (PDA retaliation). Statement of Response defective. Replication and Unilateral Pre-Trial Minute filed.	Employer filed on behalf of non-cited entity; "Good luck to you then" response; non-cooperative pre-trial.
CAS 705/3/2026	SAPS Woodstock (transferred from Delft)	Criminal case — UIF fraud / false representations. Registered but no investigation conducted.	No detective assigned; internal Delft complaint closed without investigating false station commander claim.
5/02/2026	B-BBEE Commission	Fronting complaint (title suppression). Notice of Non-Investigation issued 30 March 2026.	Commission refused Section 13K subpoena powers. Closed.
1-370127	FSCA	Governance failure / market conduct complaint.	Acknowledged — no substantive response. FSCA went silent.
JvS/166792	JSE Issuer Regulation	Non-disclosure of material litigation. Jurisdictional declination 6 March 2026; confirmed 11 May 2026.	Closed. No action. JSE declined to enforce disclosure.

Summary of Delays (as at June 2026)

Proceeding	Days Delayed	Cause of Delay
Labour Court default judgment (2026-077546)	45+ days	Registrar unresponsive; no hearing date allocated

Labour Court pre-trial conference	14+ days (statutory window expired)	Employer proposed non-compliant date; settlement-then-silence tactic
High Court final hearing (2026-086906)	11 months (extended to March 2027)	Court accepted employer's request for semi-urgent roll
SAPS criminal investigation (CAS 705/3/2026)	3+ months	No detective assigned
High Court audio recording (for rescission)	2+ months	Registrar non-responsive; Inlexso had no backup system

PART NINE: RECOMMENDATIONS TO PARLIAMENT

9.1 Institutional Accountability Hearings

Parliament must convene accountability hearings before the relevant Portfolio Committees and summon the following officials to give account of the failures documented in this report:

Official	Institution	Committee	Core Question
Registrar	CMS	Health	Why was the Gexus-DMS integration gap not investigated under MSA Sections 7, 44, 47, 58?
Registrar	SANC	Health	Why was complaint SANC/MEDSCHEME/MATTHEE/20260105 ignored?
Chairperson	HPCSA	Health	Why was the ethical ruling request (14 April 2026) not answered?
Chairperson	SAPC	Health	Why was the Responsible Pharmacist complaint declined?
Director-General	DEL	Employment & Labour	Why was the UI-19 fraud not corrected and UIF remittance not enforced?
Commissioner / PSC Landu	CCMA	Employment & Labour	Why was the internal complaint against Commissioner Ngwane a whitewash?
Commissioner	B-BBEE Commission	Trade, Industry & Competition	Why was Case 5/02/2026 declined and Section 13K not invoked?
Head: Issuer Regulation	JSE	Trade, Industry & Competition	Why was AfroCentric not required to disclose material litigation?
Chairperson	SAHRC	Justice	Why did a Chapter 9 institution acknowledge seriousness and then go silent?
National Commissioner	SAPS	Police	Why is CAS 705/3/2026 uninvestigated and the Delft officer unaccountable?

9.2 Legislative Reforms

- Amend the NHI Act 20 of 2023: Sections 39, 40, and 20(2)(g) to incorporate mandatory Forensic Governance Impact Assessments, an AI Audit Protocol, and an independent investigation unit with professional competency standards.
- Amend the Protected Disclosures Act 26 of 2000: Introduce interim hardship relief, a single whistleblower protection authority, and criminal penalties for regulators acting in bad faith.
- Amend the Labour Relations Act: Make it a statutory offence for a CCMA commissioner to wilfully fail to assist a self-represented litigant; require a functional electronic filing system.
- Amend the Criminal Procedure Act: Impose a clear duty on a police official to open a case docket for any allegation of a crime, with a written reason for refusal reviewable by a magistrate.

- Amend the SAHRC Act: Impose a mandatory 30-day deadline for the SAHRC to decide whether to investigate; prohibit redirection of constitutional rights complaints without retaining concurrent oversight.

9.3 Referrals for Criminal and Professional Discipline

- National Prosecuting Authority: Refer the perjury matrix (Vijay Makenjee's contradictory sworn statements across courts; Xolile Manyati's sworn characterisation of clinically diagnosed PTSD).
- Legal Practice Council: Refer Deneys Reitz Inc. for threatening contempt for petitioning Parliament; refer Vijay Makenjee for the "Good luck to you then" response and professional misconduct.
- IPID: Request immediate investigation into the Delft Police Station officer who falsely claimed to be the station commander and refused to open a criminal case for statutory offences.
- Auditor-General: Request forensic audit of Medscheme's administration of GEMS, specifically the Gexus-DMS integration gap and its actuarial implications for member funds.

9.4 Judicial Oversight

- Request both Judge Presidents to investigate: (a) the concealment of the answering affidavit in Case 2026-086906; and (b) the Labour Court portal obstruction and Registrar's silence on Case 2026-077546.
- Request the Office of the Chief Justice to examine the systemic barriers to court access facing destitute, self-represented litigants — particularly the Labour Court's online portal rejection practices.

PART TEN: CONCLUSION — WHY PARLIAMENT MUST ACT NOW

This report has placed before Parliament 500 pages of primary source evidence, the testimony of fifteen failed institutions, a corporate cover-up, a court order obtained by concealment, and a protected whistleblower who has been reduced to living without running water.

The conclusions of this report are five-fold:

Conclusion	Finding	Parliamentary Response Required
1. Regulatory Capture Is Systemic	Not a single one of the 15 institutions approached provided a remedy. This is not coincidence — it is systemic capture of the accountability architecture.	Summon all 10 named officials; investigate institutional failure patterns across all Portfolio Committees.
2. The NHI Governance Architecture Is Broken	The same institutions that failed this whistleblower will fail the NHI. The three structural gaps (accreditation, fraud architecture, investigation unit) are already exploited in the current system.	Amend NHI Act Sections 39, 40, 20(2)(g) immediately — before NHI Fund becomes operational.
3. The Chilling Effect Is Real	Every healthcare professional in South Africa now knows: reporting a patient safety risk may result in homelessness, deregistration, and a court gag order. The pipeline of NHI whistleblowers has already been poisoned.	Amend the PDA to introduce interim hardship relief and a single protection authority.
4. The Courts Have Failed	Fraud on the court (concealed answering affidavit), a gag order that overrides the PDA, portal obstruction, a six-week default judgment delay, and apparent perjury across courts — all without consequence.	Request Judge Presidents to investigate; refer perjury to NPA; refer attorneys to Legal Practice Council.
5. Public Funds Are at Risk	GEMS member contributions may have been inflated by the Gexus-DMS integration gap. AfroCentric's Annual Report omitted a potential R580 million B-BBEE fine. The JSE allowed this to stand.	Request Auditor-General forensic audit; require corrective SENS announcement.

⚠ FORENSIC FINDING

THE QUESTION BEFORE PARLIAMENT: The question is not whether this whistleblower was constructively dismissed. The question is whether the institutions that failed him will fail the next whistleblower — and the next — and the next — until the NHI Fund, with its R200 billion, is built

on the bones of people who tried to do the right thing. Parliament has before it the evidence, the findings, and the recommendations. The time to act is now.

PART ELEVEN: FINAL PRAYER FOR RELIEF

The complainant respectfully requests that Parliament, through its Portfolio Committees and in the exercise of its constitutional oversight mandate, grant the following relief:

Relief 1: Summons

That the relevant Portfolio Committees summon the ten named officials to appear before Parliament and account for the institutional failures documented in this report.

Relief 2: Legislative Reform

That Parliament direct that the NHI Act 20 of 2023 be amended to address the three structural governance gaps identified in this report; that the Protected Disclosures Act 26 of 2000 be amended to introduce interim hardship relief and a dedicated whistleblower protection authority.

Relief 3: Referrals

That the relevant Portfolio Committees refer the perjury matrix to the NPA; refer the conduct of Deneys Reitz Inc. and Vijay Makenjee to the Legal Practice Council; and request IPID to investigate the Delft Police Station officer.

Relief 4: Judicial Inquiries

That Parliament request the Judge Presidents of the Western Cape High Court and the Labour Court to investigate the concealment of the answering affidavit and the Labour Court portal obstruction respectively.

Relief 5: Forensic Audit

That SCOPA request the Auditor-General to conduct a forensic audit of Medscheme's administration of GEMS, with specific reference to the Gexus-DMS integration gap and its actuarial implications for member contributions.

Relief 6: Protection of This Submission

That Parliament place on record that this submission is made under Section 56 of the Constitution and Section 8 of the Protected Disclosures Act, and that the employer's interim interdict (Case 2026-086906) cannot lawfully restrain the complainant from petitioning Parliament.

Signed under oath at Cape Town, this _____ day of June 2026.

WILBUR WILLIAM MATTHEE

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

CPrAc(SA) — pending | info@ethichawks.co.za | 069 635 1435

15 Bellevue Street, Voorbrug, Cape Town, 7001 (currently homeless — service by email only)

EPILOGUE — THE HUMAN FACE BEHIND THIS REPORT

To the Honourable Speaker and Members of Parliament,

I close this report not with a legal argument, not with a citation, not with a prayer for relief — but with a name and a face.

The 75-year-old GEMS beneficiary. The elderly widow who received a false non-adherence letter. Her daughter wrote to Medscheme: "I request that you get your house in order and update your records. Stop confusing old lady."

I do not know her name. I know her case number: GEMS 000655789 Dependent 02. I know that she collected her cholesterol medication every month. I know that the system failed her. I know that when I refused to lie to her, my life was destroyed.

She is the reason I spoke. She is the reason I did not stay silent. And she is the reason I am still standing — homeless, deregistered, without running water, but still standing.

I also think of my mother. She is not here to read this report. But everything I have done, I have done because she taught me that a nurse's first duty is to the patient — not to the employer, not to the system, not to the profit margin.

A nurse who lies to a patient is not a nurse. A system that punishes the nurse who refuses to lie is not a healthcare system. It is a conspiracy against the vulnerable.

Parliament has before it 500 pages of evidence, fifteen failed institutions, a corporate cover-up, a court order obtained by concealment, and a whistleblower who has been reduced to living without running water.

But behind every page of this report is a 75-year-old widow who deserved better. And behind every signature on this report is a nurse who refused to lie to her.

The question before Parliament is not whether I was constructively dismissed. The question is whether the institutions that failed me will fail the next whistleblower — and the next — and the next — until the NHI Fund, with its R200 billion, is built on the bones of people who tried to do the right thing.

I have done everything the law asked of me. I have exhausted every remedy. I have knocked on every door.

This is the last door.

I place my trust in Parliament.

Wilbur William Matthee

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

Cape Town, South Africa | June 2026

"The house is not yet burning. But the fire alarm has been ringing for over a year. This report is the evidence of the smoke. Parliament must act before the NHI becomes the fire."

INDEX OF ANNEXURES — CONSOLIDATED EVIDENCE BUNDLE

Annexure Ref	Description	Date	Source
A1	Interview invitation — "Specialist: Care Manager" role (3 invitations)	Jan 2024	AfroCentric / Medscheme
A2	Employment contract — "Care Coordinator" (Grade B4M1)	9 Apr 2024	AfroCentric / Medscheme
A3	First Aider roster — management of 13+ staff across 3 floors	25 Jul 2025	Complainant
B1	Dr Jacques Malan psychiatric letter — severe depression and PTSD (FCPSYCH(SA))	16 May 2025	Dr Jacques Malan
C1	"Wilma" Microsoft Teams message (gender identity harassment)	23 Sep 2025	Medscheme systems
C2	Formal discrimination complaint (11 pages)	25 Sep 2025	Complainant
C3	Retaliatory unpaid leave entry (same day as discrimination complaint)	29 Sep 2025	Medscheme payroll
D1	Gexus-DMS Root Cause Analysis (RCA) — confirms integration gap	23 Oct 2025	Medscheme internal investigation
D2	Protected disclosure email — complainant refuses to contact patient	23 Oct 2025	Complainant
D3	Manager's response: "I am not in agreement with your feedback"	23 Oct 2025	Mary-Ann Jones
E1	Recorded meeting transcript — "You made a case of harassment against me..." (retaliatory admission)	31 Oct 2025	Complainant (audio)
F1	Executive escalation (32 attachments) — requests paid leave, settlement framework	4 Dec 2025	Complainant
G1	Priority 1 Material Risk Report to Board (38 attachments) — includes s60 EEA personal liability warning	9 Dec 2025	Complainant
H1	Employer's CCMA opposing affidavit — depression described as "cynical excuse" (Xolile Manyati)	10 Dec 2025	Xolile Manyati / AfroCentric
H2	Resignation letter — "automatically unfair constructive dismissal" (LRA s186(1)(e))	11 Dec 2025	Complainant
I1	CRO suppression email — "stop sending these e-mails to our directors" (Monwabisi Kula)	18 Dec 2025	Monwabisi Kula (CRO)
J1	CMS declination letter (first) — refers to HPCSA	4 Feb 2026	CMS
J2	SAHRC response — acknowledges seriousness, redirects to CCMA	10 Feb 2026	SAHRC

J3	SANC formal complaint SANC/MEDSCHEME/MATTHEE/20260105 — no acknowledgment received	10 Feb 2026	Complainant
K1	JSE declination — Ref JvS/166792	6 Mar 2026	JSE
K2	Labour Court portal rejection — "good day you put date"	12 Mar 2026	Labour Court registry
L1	Section 162 director delinquency application — filed	19 Mar 2026	Complainant
M1	High Court interim interdict — gag order (ex parte, answering affidavit concealed)	16 Apr 2026	Western Cape High Court
M2	Rule nisi extended to 1 March 2027	28 May 2026	Western Cape High Court
N1	Employer's Labour Court Statement of Response — "not aware" of Case 2026- 077546 (apparent perjury)	19 May 2026	Vijay Makenjee / AfroCentric
O1	"Good luck to you then" email	2 Jun 2026	Vijay Makenjee
P1	Deneys "without prejudice" letter — threatens contempt for petitioning Parliament	4 Jun 2026	Deneys Reitz Inc.
Q1	Unilateral Pre-Trial Minute	11 Jun 2026	Complainant
R1	Final notice to employer — deadline for settlement framework	13 Jun 2026	Complainant
S1	This Consolidated Forensic Oversight Report	June 2026	Complainant / EthicHawks

Audio Recordings Available Separately

Recording	Date	Content and Status
Recording 1	31 Oct 2025	Manager's retaliatory admission — Available and transcribed
Recording 2	23 Feb 2026	Delft Police Station — officer falsely claims to be station commander — Available; not yet transcribed

All documents and recordings are available to Parliament upon request. The complainant requests that a parliamentary legal officer or independent forensic investigator be appointed by Parliament to verify the authenticity of the evidence bundle.

SIGNATURE BLOCK AND COMMISSIONER OF OATHS

I, the undersigned, WILBUR WILLIAM MATTHEE, declare under oath that the contents of this Consolidated Forensic Oversight Report are, to the best of my knowledge and belief, true and correct. I have personal knowledge of the facts set out herein, except where indicated to the contrary, and the documentary evidence referenced throughout is genuine and has not been materially altered.

I am aware that making false statements in a submission to Parliament may be a criminal offence. I have not made any false statements.

I make this report in good faith, under the protections of the Protected Disclosures Act 26 of 2000, and in the exercise of my constitutional right to petition Parliament under Section 56 of the Constitution of the Republic of South Africa, 1996.

Field	Detail
FULL NAME	Wilbur William Matthee
ID NUMBER	890903 5151 087
CAPACITY	Complainant / Whistleblower / Self-Represented Litigant
CONTACT	info@ethichawks.co.za 069 635 1435
ADDRESS	15 Bellevue Street, Voorbrug, Cape Town, 7001 (currently homeless — service by email only)
DATE	June 2026
PLACE	Cape Town, South Africa
SIGNATURE	_____

Commissioner of Oaths

Field	Detail
FULL NAME	_____
CAPACITY	_____
BUSINESS ADDRESS	_____
AREA OF JURISDICTION	_____
APPOINTMENT EXPIRY DATE	_____
DATE	_____
PLACE	_____

SIGNATURE	
STAMP	(Affix Commissioner of Oaths stamp here)